

Tentative Rulings and Resolution Review Hearings

July 13, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

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To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

- 1. Please mute your telephone until your case is called.**
- 2. Please do not place the call on hold.**
- 3. Minimize all background noise during your call.**
- 4. Please identify yourself, each time, prior to addressing the court.**
- 5. Disconnect when the court has completed your case or cases.**
- 6. The court prohibits the recording of these proceedings.**

8:30 a.m. – Law & Motion

ADK PROPERTIES LLC, ET AL. VS. FPI MANAGEMENT, INC., ET AL.

CASE NUMBER: 26CV-0210272

Tentative Ruling on Demurrer: Defendants FPI Management, Inc. (FPI), Dennis Treadaway, and Curtis Tumbaga demurrer to the Second, Fifth, Sixth, and Seventh Causes of Action in the Complaint filed by Plaintiffs on April 1, 2026. Plaintiffs oppose the Demurrer.

Meet and Confer. Defendants provided sufficient evidence of meet and confer efforts prior to filing the Demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or

conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Second Cause of Action – Breach of the Implied Covenant of Good Faith and Fair Dealing.

To state a cause of action for breach of the implied covenant of good faith and fair dealing, a plaintiff must generally establish the following elements: 1) the plaintiff and the defendant were parties to a contract; 2) the defendant owed a duty of good faith to the plaintiff; 3) the defendant breached that duty by performing in a manner that was unfaithful to the purpose of the contract or by interfering with the other party's performance; and 4) the plaintiff's justified expectations were denied, and 5) resulting in damages.

“The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the *benefits of the agreement actually made*.” (*Guz v. Bechtel Nat., Inc.* (2000) 24 Cal.4th 317, 349 [100 Cal. Rptr. 2d 352, 8 P.3d 1089].) A claim for breach of the implied covenant of good faith and fair dealing requires the existence of a contract, whether express or implied. (See *Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031–1032 [14 Cal. Rptr. 2d 335] [“The implied covenant of good faith and fair dealing rests upon the existence of some specific contractual obligation. [¶] ... [¶] [T]here is no obligation to deal fairly or in good faith absent an existing contract”].)

Alameda Health System v. Alameda County Employees’ Retirement Assn. (2024) Cal. App. 5th 1159, 1190.

While this cause of action is most often sought in the case of an insured against an insurer, it is not precluded in other contexts. Here, Plaintiffs have alleged the existence of contracts, a fiduciary relationship requiring Defendant FPI to act in good faith, and several breaches of the contracts. It is alleged that FPI had discretion in how to manage the properties and exercised that discretion in a way that harmed Plaintiff to FPI’s own benefit. Based on the allegations regarding how these contracts were formed, Plaintiffs were justified in their reliance on FPI acting in good faith. Plaintiffs have alleged damages and clearly acknowledge in the complaint and in their briefing that this Cause of Action does not seek tort remedies. Plaintiffs have stated facts sufficient to constitute a cause of action.

Fifth Cause of Action – Fraud – Intentional Misrepresentation.

The elements of fraud are a) misrepresentation, b) knowledge of falsity, c) intent to defraud, d) justifiable reliance, and e) damages. *Lazar v. Superior Ct.* (1996) 12 Cal. 4th 631, 638. Fraud allegations must be pled with more detail than other causes of action. The facts constituting the fraud, including every element of the cause of action, must be alleged factually and specifically. The objectives are to give the defendant notice of definite charges which can be intelligently met, and to permit the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. *Apollo Cap. Fund, LLC v. Roth Cap. Partners, LLC* (2007) 158 Cal. App. 4th 226, 240.

In cases involving fraud, allegations as to matters which are peculiarly within the knowledge of the defendant, and as to which the plaintiff can learn only from statements made to them by others, may be made on information and belief. Less certainty is required in pleading such facts than in pleading facts presumptively or actually within the knowledge of the plaintiff.

Lewis v. Beeks (1948) 88 Cal. App. 2d 511, 521.

Plaintiffs have alleged several facts that were represented to Plaintiffs that were not true. While Defendants argue that the facts were actually opinion, several facts are alleged in the Complaint that Plaintiff alleges were objectively untrue. On demurrer, the Court takes each facts alleged to be true. Plaintiffs have stated sufficient facts to constitute a cause of action for fraudulent misrepresentation.

Sixth Cause of Action – Fraudulent Concealment.

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.

Hambrick v. Healthcare Partners Med. Grp., Inc. (2015) 238 Cal. App. 4th 124, 162.

Plaintiffs have alleged numerous material facts that were not disclosed to Plaintiffs. FPI was in a fiduciary relationship with Plaintiffs and therefore had a duty to disclose as did Treadaway and Tumbaga. Plaintiffs have alleged that Defendants intended to defraud Plaintiffs by concealing the issues with FPI's property management. Plaintiffs allege that had they known, they would have terminated the contracts sooner. Plaintiffs allege damages. As discussed above, less certainty is required when one party has exclusive knowledge. Plaintiffs have stated facts sufficient to constitute a cause of action for fraudulent concealment.

Seventh Cause of Action – Negligent Misrepresentation.

A cause of action for negligent misrepresentation has the same elements as a fraudulent representation, however, knowledge of the falsity is not required. Plaintiffs have properly alleged negligent misrepresentation.

The Demurrer is **OVERRULED**. Defendants provided a proposed Order that will be modified to reflect the Court's ruling.

Tentative Ruling on Motion to Strike: Defendants FPI Management, Inc. (FPI), Dennis Treadaway, and Curtis Tumbaga move to strike all references to punitive damages in the Complaint filed by Plaintiffs on April 1, 2026. Plaintiffs oppose the motion.

Meet and Confer. Defendants provided sufficient evidence of meet and confer efforts prior to filing the Motion to Strike.

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. It is proper for the Court to strike any irrelevant, false or improper matter. CCP § 436(a). The Court can also strike any part of a pleading that is not drawn or filed in conformity with California law. CCP § 436(b). The proper procedure for testing the adequacy of punitive damages is a motion to strike. *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163-64. Punitive damages require a showing of malice, oppression, or fraud. Civ. Code § 3294.

Malice is defined as conduct intended to cause injury or despicable conduct which is carried out with a willful and conscious disregard of the rights or safety of others. Civ. Code § 3294(c)(1). Despicable conduct is conduct so "vile, base and contemptible" as to be "looked down upon and despised by ordinary decent people." *Lackner*

v. North (2006) 135 Cal.App.4th 1188, 1210-12. The complaint must allege ultimate facts of the oppression, fraud, or malice. *Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316-17. A complaint must set forth the facts with sufficient precision to put the defendant on notice about what the plaintiff is complaining and what remedies are being sought. *Signal Hill Aviation Co., Inc. v. Stroppe* (1979) 96 Cal.App.3d 627, 636.

The Court overruled the demurrer to the fraud causes of action. Because punitive damages are permitted for fraudulent conduct, the prayer for punitive damages based on fraud will not be stricken. Punitive damages are also sought under the Third Cause of Action for breach of fiduciary duty. In ¶ 117, Plaintiffs allege that FPI's conduct was willful, oppressive, and carried out with a conscious disregard for Plaintiffs' rights. The allegations made in the Summary of Factual Allegations support this. A pattern of mismanagement is alleged in ¶ 48. Specific examples are provided in ¶¶ 51, 53, 54, and 56. Plaintiffs allege in ¶ 57 that FPI demonstrated carelessness and recklessness. Plaintiffs allege that at least four formal claims and lawsuits were filed for discrimination related to Plaintiffs' properties. ¶ 58. FPI regularly overspent Plaintiffs' budgets and withdrew funds from Security Deposit Accounts without authorization. ¶ 60-61. While there are several additional allegations in the Complaint, the allegations described thus far are sufficient to support malice or oppression in the breach of fiduciary duty. Therefore, punitive damages are properly alleged.

Defendants argue that Plaintiffs have not sufficiently plead a claim for punitive damages against FPI, which is an entity rather than a person.

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

Civ. Code § 3294(b).

The two employees mostly listed in the Complaint are Treadaway and Tumbaga who are the CEO and Vice President of Affordable Housing. These contracts were for affordable housing. When the fraud is by concealment versus misrepresentation, a party is not able to allege who, what, when, etc. for a disclosure that did not happen. The allegations made by Plaintiffs are against Defendants as a whole and are sufficient at this stage of the proceedings, especially given that concealment is attributed to the CEO and Vice President.

The motion is **DENIED**. Defendants provided a proposed Order that will be modified to reflect the Court's ruling.

BERG VS. GRIFFIN

CASE NUMBER: 25CV-0208647

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 4, 2026 to Plaintiff Adam Berg and counsel Legal Needs, APC for failure to timely seek entry of default as required by CRC 3.110(g). Defendant filed an Answer on June 18, 2026. The matter is now at issue. The Order to Show Cause is **DISCHARGED**. The Court calendars the matter on **Monday, August 10, 2026 at 9:00 a.m. in Department 63** for a trial setting conference. Plaintiff is **ORDERED** to provide notice of the August 10, 2026 hearing.

CAPITAL ONE, N.A. VS. FORTNER

CASE NUMBER: 25CVG-00896

Tentative Ruling on Motion for Order Deeming Matters Admitted: Defendant Nicole D. Fortner moves for an order compelling Defendant's Requests for Admission, Set One deemed admitted by Plaintiff Capital One, N.A. The motion was originally set for hearing on June 15, 2026, however, Proofs of Service, an Opposition, and Reply were filed in the five court days prior to the hearing. All were untimely. The Court continued hearing on the motion to July 13, 2026. The Court further notes that Plaintiff submitted an additional opposition on July 9, 2026, just two court days before the hearing. Despite the tardiness of the July 9 opposition, the Court will exercise its discretion and consider the late filed opposition.

Merits. "Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." CCP § 2024.020(a). Trial was initially calendared for June 29, 2026, making a June 15, 2026 hearing date just beyond the fifteen day cut off. The Court notes that the June 29, 2026 trial date was vacated on June 15, 2026. The Court also notes that Defendant moved ex parte on May 12, 2026 and was diligent in filing the motion within a week of the denied ex parte. Defendant has provided evidence regarding why the motion was not made sooner and the delays caused by Plaintiff not responding to discovery. The Court finds good cause to reopen discovery for the purpose of hearing this motion.

When a party fails to timely respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to timely respond also waives any objections to the discovery propounded. CCP § 2033.280(a).

The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

CCP § 2033.280(c).

Plaintiff's moving papers sufficiently demonstrate that Defendant failed to respond to Request for Admissions, Set One within the required time frame. Defendant has established that Defendant propounded Requests for Admission, Set One by mail on March 13, 2026 and that Plaintiff did not timely respond. Plaintiff presented evidence that verified responses were served via email (not permitted per CCP § 1010.6) and mail on June 10, 2026, which is five days before the date originally set for hearing. Plaintiff objected to every request despite objections being waived due to the untimely response. Therefore, Plaintiff did not provide responses that were in substantial compliance. Plaintiff has provided no evidence for the reason for not timely responding. There is no request nor basis for an order relieving Plaintiff from the waiver of objections. The Court deems Requests for Admission, Set One admitted by Plaintiff.

Sanctions. Defendant seeks \$120 in monetary sanctions which is comprised of the \$60 motion filing fee and \$60 for office supplies and mailing. The Court will award the motion filing fee of \$60 only. Plaintiff is not responsible for expedited mailing or copying.

The motion is **GRANTED**. Defendant's Requests for Admission, Set One is deemed to have been admitted by Plaintiff. Monetary sanctions are ordered in favor of Defendant in the amount of \$60, payable within thirty days of today. Defendant provided a proposed Order, however, it did not include the text of the Requests for Admission being deemed admitted. Defendant is to prepare an Order consistent with the Court's ruling.

Tentative Ruling on Discovery Motions: Plaintiff Nicole D. Fortner filed the following motions on May 18, 2026:

- Motion for Order Compelling Initial Responses to Form Interrogatories, Set One and Special Interrogatories, Set One
- Motion for Order Compelling Plaintiff's Initial Responses to Demand for Production of Documents, Set One
- Motion for Order Precluding Evidence at Trial for Failure to Provide Sufficient Bill of Particulars

The motions were originally set for hearing on June 15, 2026, however, Proofs of Service, an Opposition, and Reply were filed in the five court days prior to the hearing. All were untimely. The Court continued hearing on the motion to July 13, 2026. In reviewing the motions, it appears that Plaintiff initially provided one Opposition to cover all three motions and Defendant filed the Reply in kind. Therefore, this tentative ruling will address all three motions. The Court further notes that Plaintiff submitted an additional opposition on July 9, 2026 just two court days before the hearing. Despite the tardiness of the July 9 opposition, the Court will exercise its discretion and consider the late filed opposition.

Reopening Discovery. “Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” CCP § 2024.020(a). Trial was initially calendared for June 29, 2026, making a June 15, 2026 hearing date just beyond the fifteen day cut off. The Court notes that the June 29, 2026 trial date was vacated on June 15, 2026. The Court also notes that Defendant moved ex parte on May 12, 2026 and was diligent in filing the motion within a week of the denied ex parte. Defendant has provided evidence regarding why the motions were not made sooner and the delays caused by Plaintiff not responding to discovery. The Court finds good cause to reopen discovery for the purpose of hearing these motions.

Form Interrogatories. This is a limited case, however, Plaintiff propounded DISC-001, which is the judicial council form for unlimited cases. Rather than providing a response or objecting within the time limits, Plaintiff chose to not respond. The main difference between a DISC-001 and a DISC-004 is that the DISC-004 does not have subparts, which assists a party in staying under the limit set for limited cases. The Court notes that the only box checked in Section 5 of the DISC-001 is Item 17.0, which seeks information regarding the Requests for Admission. Given the Court's ruling deeming Requests for Admission admitted, it appears that Defendant likely no longer requires this information. However, should Plaintiff somehow be relieved from the Order Deeming Requests for Admission Admitted, discovery will remain open for the limited purpose of propounding Form Interrogatories on the correct form. The deadline will be based on the next trial date selected.

Special Interrogatories. A party has thirty days after service to respond to Special Interrogatories. CCP § 2030.260(a). Not providing a timely response results in a waiver of objections. CCP § 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP § 2030.290(c). Defendant has presented evidence that Special Interrogatories, Set One was propounded and that Plaintiff did not respond within the timeframe required. On July 7, 2026, Plaintiff finally submitted responses to the Special Interrogatories which included objections. The Court finds that Plaintiff failed to timely file its responses and therefore objections are waived. Plaintiff shall provide further verified responses to Special Interrogatories, Set One, *without objections*, within fifteen days of today's hearing.

Request for Production. A party has thirty days after service to respond to a Request for Production. CCP § 2031.260(a). Not providing a timely response results in a waiver of objections. CCP § 2031.300(a). If a party to

whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP § 2031.300(b). Defendant has presented evidence that Request for Production, Set One was propounded and that Plaintiff did not respond within the timeframe required. On July 7, 2026, Plaintiff finally submitted responses to the Requests for Production which included objections. The Court finds that Plaintiff failed to timely file its responses and therefore objections are waived. Plaintiff shall provide further verified responses to Request for Production, Set One, *without objections*, within fifteen days of today's hearing.

Bill of Particulars. Defendant moves for an order excluding evidence at trial for Plaintiff's failure to comply with CCP § 454.

It is not necessary for a party to set forth in a pleading the items of an account therein alleged, but he must deliver to the adverse party, within ten days after a demand thereof in writing, a copy of the account, or be precluded from giving evidence thereof. The court or judge thereof may order a further account when the one delivered is too general, or is defective in any particular.

If the pleading is verified the account must be verified by the affidavit of the party to the effect that he believes it to be true; or if the facts are within the personal knowledge of the agent or attorney for the party, or the party is not within the county where the attorney has his office or from some cause unable to make the affidavit, by the affidavit of the agent or attorney.

CCP § 454.

Defendant has presented evidence that a demand was made pursuant to CCP § 454 and that an unverified response was provided by Plaintiff. The response consists of statements from August 2023 to August 2024. The Court notes that these statements do not include any charges that form the principal balance, only penalties and interest charged. This is insufficient. Defendant moves for preclusion of evidence, however, the Court notes that Plaintiff stated in the response that a Supplemental Bill of Particulars would be served. When a bill of particulars is provided but defective, the remedy is a noticed motion for a further account and bill of particulars. *Burton v. Santa Barbara Nat'l Bank* (1966) 247 Cal. App. 2d 427, 433. The Court orders Plaintiff to serve a verified bill of particulars that is in compliance with CCP § 454 within fifteen days of today's hearing. Should Plaintiff fail to do so, Defendant may bring a noticed motion for exclusion of evidence pursuant to CCP § 454.

Sanctions. Plaintiff requests monetary sanctions in the amount of \$120 on each the two motions that address Interrogatories and Request for Production. Each request is comprised of the \$60 motion filing fee and \$60 for office supplies and mailing. The Court finds that Plaintiff did not act with substantial justification in not responding to propounded discovery. The Court will award the motion filing fee of \$60 on each motion only. Plaintiff is not responsible for expedited mailing or copying.

The Motion for Order Compelling Responses to Interrogatories is **GRANTED**. Further verified responses, without objections, are to be served as noted above. The Motion for Order Compelling Responses to Request for Production is **GRANTED**. Further verified responses, without objections, are to be provided as noted above. The Motion Precluding Evidence at Trial is **DENIED** without prejudice. Defendant may bring this motion again if Plaintiff does not comply as noted above. Monetary sanctions are ordered in favor of Defendant in the amount of \$120, payable within thirty days of today. Defendant provided proposes Orders that will be modified to reflect the Court's rulings.

CONNOR VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208664

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiff Sean Connor, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on September 11, 2025 and no Proof of Service of Summons has been filed. The Court notes that a Substitution of Attorney was filed on June 4, 2026 and Plaintiff is now represented by counsel, however, the response filed by counsel indicates that new counsel will need to be retained. Due to the issue with counsel, the Court will continue the Order to Show Cause to **Monday, September 21, 2026 at 8:30 a.m. in Department 63**. Plaintiff is ordered to provide an update regarding counsel and service no less than five court days prior to the hearing. **No appearance is necessary on today’s calendar.**

KENDALL VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.

CASE NUMBER: 25CV-0208306

Tentative Ruling on Motion for Leave to File First Amended Complaint: Plaintiff Cindy Kendall seeks leave to file a First Amended Complaint. Defendant Hat Creek Construction & Materials, Inc. objects to the motion being heard on the ground that it was not properly noticed. The motion was filed on June 12, 2026. Printed in the caption and the body of the Notice is a hearing date of July 9, 2026. July 9 is crossed out and July 13 is interlineated in blue pen on the caption. A Proof of Service is attached to the Notice indicating electronic service on June 12, 2026. Defendant filed an Objection on July 1, 2026 and argued that electronic service on June 12, 2026 for a July 9, 2026 hearing date is not timely per CCP §§ 1005(b) and 1010.6. Attached to the Declaration of Benjamin L. Kennedy is the copy of the motion received by Defendant, which does not include the July 13, 2026 hearing date. On July 1, 2026, Plaintiff filed an Amended Notice of Motion listing the July 13, 2026 hearing date. Notice on July 1, 2026 for a July 13, 2026 hearing date is untimely. CCP § 1005(b). The motion is **DENIED** without prejudice. Plaintiff provided a proposed Order that will be modified to reflect the Court’s ruling. Should Plaintiff seek a continuance of the motion in order to provide proper notice, Plaintiff may make that request at the time of the hearing.

In reviewing this file in preparation of the instant tentative ruling, the Court notes a “Declaration of Plaintiff’s Counsel Jonathan Kaldas” filed Jun 23, 2026. Strangely, the caption does not indicate what the Declaration is intended to support. It also makes no reference to a motion nor a motion date. Also in the file is a pleading, “Defendant Hat Creek Construction & Materials, Inc.’s Objections to the Declaration of Plaintiff’s Counsel Jonathan Kaldas” filed July 1, 2026. The objections are sustained in their entirety.

*The Court notes that Plaintiff argued in the moving papers that the matter is not set for trial. It appears that the Order filed February 4, 2026 as a result of the Joint Stipulation to Continue Trial filed on January 30, 2026 may have not been served on all parties. The Mandatory Settlement Conference is calendared for **Monday, November 16, 2026 at 1:30 p.m. in Department 63** and the trial is calendared for **Tuesday, January 5, 2027 at 8:45 a.m. in Department 63**.*

LAWHEED, ET AL. VS. FULK

CASE NUMBER: 24CV-0206140

and

MOSBY VS. BRENT, ET AL.

CASE NUMBER: 25CV-0209356

Tentative Ruling on Motion to Consolidate: Plaintiffs Todd Lawheed and Amanda Mosby in Case No. 206140 and Plaintiff Amanda Mosby in Case No. 209356 move to consolidate the two matters for all purposes pursuant to CCP § 1048. Defendant Carol Fulk was properly served in 206140. “Where a defendant has not appeared,

service of notice or papers need not be made upon the defendant.” CCP § 1048. Neither Defendant has appeared in 209356, however it appears that Defendant Fulk will be represented by the same counsel as in 206140 and Plaintiffs provided a courtesy copy of the motion to Defendant Dennis L. Brent’s counsel. Therefore, the motion was properly noticed. Neither Defendant filed an Opposition.

Merits. Motions to consolidate have certain pleading requirements that are described in CRC 3.350. Plaintiffs have complied with the requirements set forth in CRC 3.350.

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

CCP § 1048(a).

Consolidation is appropriate where economy and convenience would be served by having the matters consolidated. The purpose of uniting separate lawsuits is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal. App. 4th 976, 978-979.

The two cases here stem from the same piece of real property. The two matters present common questions of law and fact and it appears that consolidating the matters is in the interest of judicial economy. No issues of prejudice have been raised and, despite being properly noticed, no party opposed the motion.

The Motion to Consolidate is **GRANTED**. 209356 is consolidated into 206140 for all purposes. All future filings will be in the lead case 206140, which is assigned to Department 63. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order and provide copies for both files.

The Court notes that 206140 is on calendar today for review regarding status of settlement or trial setting. An appearance will be necessary at 9:00 a.m. Prior to the review hearing, the parties are to meet and confer to discuss whether the dates currently set in 209356 are acceptable. The present dates in 209356 are November 3, 2026 for trial and September 8, 2026 for Mandatory Settlement Conference.

SERAQUIEL VS. CARPENTER, ET AL.

CASE NUMBER: 25CV-0208634

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 4, 2026 to Plaintiff Christine L. Seraquiel, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b) and failure to timely seek entry of default as required by CRC 3.110(g). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on September 8, 2025 and a valid Proof of Service of Summons has not been filed for Defendant Shaun Michael Carpenter. Proof of Service of Summons was filed for Defendant Jeffery Del Vecchio on September 22, 2025, however, no Request for Entry of Default has been filed. “If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed.” CRC 3.110(g). Plaintiff did not file a written response to the Order to Show Cause.

Without sufficient excuse for the delays, sanctions are imposed in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve per CRC 3.110(b), failure to timely seek entry of default per CRC

3.110(g), and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be on **Monday September 14, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause Re: Dismissal.

WIEMERS, ET AL. VS. HOERNING, ET AL.

CASE NUMBER: 25CV-0208527

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiffs Christopher Wiemers and Michael Rooney and counsel Rooney Law Firm for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on August 25, 2025 and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiffs and counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve per CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be on **Monday September 14, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause Re: Dismissal.

9:00 a.m. – Review Hearings

CAPITAL ONE, N.A. VS. FORTNER

CASE NUMBER: 25CVG-00896

This collections action is on calendar for review regarding status of the case and to reset the court trial. The matter is at issue. **An appearance is necessary on today’s calendar.**

CHEATHON VS. DOHANUE

CASE NUMBER: 25CV-0208536

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than February 23, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today’s calendar.**

GAIGE VS. GREYHOUND LINES, INC, ET AL.

CASE NUMBER: 23CV-0203891

This matter is on calendar for review regarding status of removal to Federal Court. No status statement was filed. **An appearance is necessary on today’s calendar.**

HUNTER VS. OXFORD SUITES REDDING, ET AL.

CASE NUMBER: 25CV-0208594

This matter is on calendar for a trial setting conference. The matter is not at issue. Plaintiff has not filed a Proof of Service of Summons for all named defendants. The Court will issue an Order to Show Cause Re: Sanctions in the amount of \$250 to Plaintiff and counsel for failure to timely serve all defendants pursuant to CRC 3.110(b). Hearing on the Order to Show Cause will be on **Monday, September 21, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. The matter will also be on calendar on **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today’s calendar.**

LAWHEED, ET AL. VS. FULK

CASE NUMBER: 24CV-0206140

The matter is on calendar for review regarding status of settlement or trial setting. A Motion for Consolidation was granted on this morning's Law & Motion calendar and the matter is now consolidated with Case No. 209356 which is calendared on November 3, 2026 for trial and September 8, 2026 for Mandatory Settlement Conference. The parties are ordered to meet and confer prior to the hearing regarding whether these dates will work for all parties. **An appearance is necessary on today's calendar.**

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

CASE NUMBER: 22CV-0201036

This matter is on calendar for review regarding status of class notice. Both parties filed status statements. Due to defense counsel changing firms, the parties have not adequately met and conferred regarding the class notice. The matter will be on calendar on **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of class notice. The parties are ordered to meet and confer and file a joint status statement outlining the status of the class data, which was previously ordered to be produced, and the class notice. The joint status report shall be filed no later than September 18, 2026. **No appearance is necessary on today's calendar.**

QUAAS VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORTIVE SERVICES, LLC, ET AL.

CASE NUMBER: 25CV-0207825

This matter is on calendar for review regarding status of mediation. The parties were ordered to file separate status statements at least five court days prior to today's hearing. Neither party filed a status statement. **An appearance is necessary on today's calendar.**

RHYNE VS. SASD REDDING PARTNERS, LLC

CASE NUMBER: 24CVG-00955

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on November 25, 2025 which indicates that the case would be dismissed no later than January 31, 2026. This is the fifth review hearing since the Notice of Settlement was filed. At the last hearing on May 26, 2026, Plaintiff was ordered to file a status statement no less than five court days prior to today's hearing. A status statement has not been filed. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to dismiss the matter without prejudice pursuant to CRC 3.1385(c)(2).**

SAFECO INSURANCE COMPANY OF AMERICA VS. WINTERS, ET AL.

CASE NUMBER: 25CV-0208237

This matter is on calendar for review regarding status of responsive pleading. The Court notes that Defendant Gregory Winters, Individually and a Trustee of the Slavich Christie Marie Special Needs Trust filed an Answer on April 15, 2026. Defendant Christie Marie Slavich has not been served and has not appeared. At the last hearing on May 26, 2026, Plaintiff's counsel informed the Court that Christine Marie Slavich is no longer included in the insurance coverage, however, no action has been taken. The Court directed the parties to file status statements at least five days prior to today's hearing. Plaintiff did not file a status statement. **An appearance is necessary on today's calendar.**

SCHMIDT VS. SHASTA REGIONAL MEDICAL GROUP INC., ET AL.

CASE NUMBER: 25CV-0208484

This matter is on calendar for review regarding status of arbitration. No status statement was filed. **An appearance is necessary on today's calendar.**

SHIPMAN, ET AL. VS. KAMUNYU, ET AL.

CASE NUMBER: 24CV-0204195

This consolidated matter is on calendar for a trial setting conference. The matter is at issue. The Court finds this

matter to be exempt from plan designation and intends to set the matter for jury trial no later than January 12, 2027. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

SOUTHERN VS. PUCKETT RESIDENTIAL SERVICES, INC

CASE NUMBER: 24CV-0204965

This matter is on calendar for review regarding status of mediation and settlement. The parties file a joint status statement requesting the hearing being continued for 90 days. The matter is continued to **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of mediation and settlement. The parties are ordered to file a joint status statement at least five court days prior to the next review hearing. **No appearance is necessary on today's calendar.**